

26CV00860 Jacqueline Estrada vs City of Carpinteria

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-07-06

Motion: Motion: Order re Late Claim

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Tentative Ruling: Jacqueline Estrada vs City of Carpinteria

Case Number

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Case Type

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Hearing Date / Time

Mon, 07/06/2026 - 10:00

Nature of Proceedings

Motion: Order re Late Claim

Tentative Ruling

Jacqueline Estrada v. City of Carpinteria

Case No. 26CV00860

Hearing Date: July 6, 2026

HEARING: Petition for Order Permitting Late Claim

ATTORNEYS: For Petitioner Jacqueline Estrada: Eric C. Bonholtzer; Drew N. Evans

For Respondent City of Carpinteria: Lisa N. Shyer, Procter, Shyer & Winter, LLP

TENTATIVE RULING:

The petition of Jacqueline Estrada for an order pursuant to Government Code section 946.6 is granted. Petitioner is relieved of the requirements of Government Code section 945.4.

Background:

Petitioner Jacqueline Estrada alleges having suffered personal injuries as the result of a fall due to an uneven/ cracked sidewalk located in respondent City of Carpinteria (City) on February 7, 2025. (Shyer decl., exhibit A, pp. 12-13, ¶ 7 [plaintiff's complaint].)

On July 16, 2025, paralegal Nancy Robles, who works for counsel for Estrada, attorney Eric C. Bonholtzer, submitted a claim for damages to the City (the Claim) by mail. (Robles decl., ¶ 2; Bonholtzer decl., ¶ 2 & exhibit 1.)

On September 9, 2025, Robles called the City Clerk's Office to follow up on the Claim before filing a complaint. (Robles decl., ¶ 3; Bonholtzer decl., ¶ 4.) At that time, the City's clerk stated that the Claim was never received and asked for a copy to be sent. (Robles decl., ¶ 4; Bonholtzer decl., ¶ 5.) A copy was immediately sent, and was received by City on September 11, 2025, which the City marked as Claim 109. (Robles decl., ¶ 4; Bonholtzer decl., ¶¶ 5, 6 & exhibit 2; see also Shyer decl., ¶ 2 & exhibit B.)

On September 16, 2025, out of an abundance of caution, Bonholtzer sent an Application for Late Claim, which was received by the City on September 17, 2025. (Bonholtzer decl., ¶¶ 7, 8 & exhibit 3; see also Shyer decl., ¶ 3 & exhibit C.)

On October 15, 2025, the claims management company for the City served a late claim notice on Bonholtzer with respect to the re-sent Claim. (Bonholtzer decl., ¶ 9 & exhibit 4.) No response was sent as to the Application for Late Claim submitted on September 16. (Bonholtzer decl., ¶ 9.)

On February 3, 2026, Estrada filed a complaint based upon the automatic denial of the originally submitted Claim. (Bonholtzer decl., ¶ 11.)

On February 6, 2026, out of an abundance of caution, Estrada filed this petition for an order permitting a late claim. (Bonholtzer decl., ¶ 12.)

This petition for an order permitting a late claim is opposed by the City.

Analysis:

"If an application for leave to present a claim is denied or deemed to be denied pursuant to Section 911.6, a petition may be made to the court for an order relieving the petitioner from Section 945.4." (Gov. Code, § 946.6, subd. (a).)

"The petition shall show each of the following:

"(1) That application was made to the board under Section 911.4 and was denied or deemed denied.

“(2) The reason for failure to present the claim within the time limit specified in Section 911.2.

“(3) The information required by Section 910.

“The petition shall be filed within six months after the application to the board is denied or deemed to be denied pursuant to Section 911.6.” (Gov. Code, § 946.6, subd. (b).)

City opposes the application on the grounds that there is no proof that the Claim was submitted on July 16, 2025, and that the City has been prejudiced by the late claim because the claim was late and is vague as to the nature of the fall and injury.

Presentation of a claim may be made by mail. (Gov. Code, § 915, subd. (a)(2).) “If a claim, amendment to a claim, or application to a public entity for leave to present a late claim is presented or sent by mail under this chapter, or if any notice under this chapter is given by mail, the claim, amendment, application, or notice shall be mailed in the manner prescribed in this section. The claim, amendment, application, or notice shall be deposited in the United States post office, a mailbox, sub-post office, substation, mail chute, or other similar facility regularly maintained by the government of the United States, in a sealed envelope, properly addressed, with postage paid. The claim, amendment, application, or notice shall be deemed to have been presented and received at the time of the deposit.” (Gov. Code, § 915.2, subd. (a).)

“As applied to this section, proof of mailing may be made in the manner prescribed by Section 1013a of the Code of Civil Procedure.” (Gov. Code, § 915.2, subd. (c).)

“Proof of service by mail may be made by one of the following methods: [¶] (1) An affidavit setting forth the exact title of the document served and filed in the cause, showing the name and residence or business address of the person making the service, showing that he or she is a resident of or employed in the county where the mailing occurs, that he or she is over the age of 18 years and not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.” (Code Civ. Proc., § 1013a.)

Paralegal Robles provides a declaration stating that the Claim was sent by first class mail. The declaration does not contain all of the information required by section 1013a, but it appears likely that Robles would be able to provide that proof in the manner required by Government Code section 915.2 and Code of Civil Procedure section 1013a. Such proof would make this petition unnecessary.

However, this petition is based upon the assumption that the Claim was not presented by its original mailing but is instead based on the re-sent Claim. Under such circumstances, the inference to be drawn is that paralegal Robles believed that the Claim was properly sent by first class mail, but actually was not.

“The court shall relieve the petitioner from the requirements of Section 945.4 if the court finds that the application to the board under Section 911.4 was made within a reasonable time not to exceed that specified in subdivision (b) of Section 911.4 and was denied or deemed denied pursuant to Section 911.6 and that one or more of the following is applicable:

“(1) The failure to present the claim was through mistake, inadvertence, surprise, or excusable neglect unless the public entity establishes that it would be prejudiced in the defense of the claim if the court relieves the petitioner from the requirements of Section 945.4.” (Gov. Code, § 946.6, subd. (c)(1).

“The application shall be presented to the public entity as provided in Article 2 (commencing with Section 915) within a reasonable time not to exceed one year after the accrual of the cause of action and shall state the reason for the delay in

presenting the claim. The proposed claim shall be attached to the application.” (Gov. Code, § 911.4, subd. (b).) The injury is alleged to have occurred on February 7, 2025. The Claim was re-sent on September 11, 2025. The re-sent Claim was presented within one year. The evidence presented shows that the re-sent Claim was presented as soon as the original's non-receipt was learned by Estrada's counsel. The court finds that the re-sent Claim was presented within a reasonable time.

The evidence shows that Estrada's counsel's office reasonably believed that the Claim was mailed as required. If the Claim was not mailed as required, a reasonable inference is that the failure was the result of surprise or excusable neglect. The court finds on the evidence presented that the failure to make a timely claim (if indeed the Claim was untimely presented) was the result of surprise or excusable neglect.

“A claim shall be presented by the claimant or by a person acting on his or her behalf and shall show all of the following:

“(a) The name and post office address of the claimant.

“(b) The post office address to which the person presenting the claim desires notices to be sent.

“(c) The date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted.

“(d) A general description of the indebtedness, obligation, injury, damage or loss incurred so far as it may be known at the time of presentation of the claim.

“(e) The name or names of the public employee or employees causing the injury, damage, or loss, if known.

“(f) The amount claimed if it totals less than ten thousand dollars (\$10,000) as of the date of presentation of the claim, including the estimated amount of any prospective injury, damage, or loss, insofar as it may be known at the time of the presentation of the claim, together with the basis of computation of the amount claimed. If the amount claimed exceeds ten thousand dollars (\$10,000), no dollar amount shall be included in the claim. However, it shall indicate whether the claim would be a limited civil case.” (Gov. Code, § 910.)

The Claim contains all of the information required by section 910. (See Bonholtzer decl., exhibit 1.) While City argues that the Claim is vague and makes investigation of the circumstances of the Claim difficult, City provides no evidence of any particular difficulties that the City would encounter in relation to relieving Estrada of filing obligations by this petition. The court finds that the City has not shown prejudice sufficient to deny the petition.

Accordingly, the court will grant the petition.

Judges

Judge Colleen Sterne

Dept. 5 SB-Anacapa

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